

Thompson Contract Breach - Construction Dispute

This matter involves a breach of contract claim brought by plaintiff David Thompson against defendant BuildRight Construction Company. The parties entered into a written contract on May 1, 2021, for the construction of a residential addition with a contract price of \$150,000 and completion date of December 1, 2021. The plaintiff alleges the defendant failed to complete the work by the agreed deadline, performed substandard work requiring costly repairs, and abandoned the project before completion. The plaintiff seeks damages for breach of contract, including the cost to complete the work, repair defective work, and consequential damages for delay. The defendant counterclaims for unpaid contract balance, asserting the plaintiff failed to make progress payments as required and made unreasonable demands for changes beyond the scope of the original contract. The defendant seeks payment of the remaining contract balance plus additional compensation for extra work performed. The court finds both parties partially at fault. The defendant did breach the contract by failing to meet the completion deadline and performing certain work below industry standards. However, the plaintiff also breached by withholding payments without proper justification. The court awards the plaintiff damages for defective work and delay, offset by the unpaid contract balance owed to the defendant. Each party shall bear their own attorney fees.